

9:00 AM
Line 6 & 7

25-CLJ-05262 AMERICAN EXPRESS NATIONAL BANK VS. GABRIEL CORPUZ

AMERICAN EXPRESS NATIONAL BANK
GABRIEL CORPUZ

ERIC J. JUN
PRO SE

- 6. Defendant's Motion to Strike Proof of Service
- 7. Defendant's Motion to Quash Service of Summons and Complaint

TENTATIVE RULING:

Defendant Gabriel Corpuz has filed a Motion to Strike Proof of Service under Code of Civil Procedure ("CCP") Section 436. However, as Plaintiff's opposition notes, Section 436 only relates to motion under CCP Section 435 which by its plain language only applies to a type of "pleading" which is defined in the statute as a "demurrer, answer, complaint, or cross-complaint." CCP § 435(a)(2). Thus this attempt to strike a Proof of Service has no statutory basis, and it is summarily DENIED.

Defendant Gabriel Corpuz has also filed a Motion to Quash Service of Summons. After reviewing the entire motion, opposition, reply, and all related filings as reflected in the Court Registry which the Court takes Judicial Notice of (Evidence Code § 452(d)), this motion is likewise DENIED.

Defendant attempts to bring this motion to quash pursuant to Code of Civil Procedure ("CCP") Sections 418.10 and 410.50. However, Section 410.50 does not provide a basis for this motion, while Section 418.10 only allows a defendant to file a motion to quash service of summons on or before the last day of the time to plead and respond to such service of summons. CCP § 418.10(a)(1). This is not applicable, as Defendant's time to plead has already expired under the Proof of Service (POS) filed on November 5, 2025, and these motions were not filed under January 13, 2026. On this procedural basis, the motion is denied. Despite this, the Court still addresses the merits.

When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, the burden is on the plaintiff to prove the facts establishing effective service. *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413. Evidence Code Section 647:

The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.

In this case, the POS filed on November 5, 2025 is by a registered process server, which creates a presumption of valid service. The POS establishes substitute service for Defendant, by serving a

known adult located at 1 Mandalay Place, Unit 1603, South San Francisco, CA 94080. POS filed 11/5/2025. Defendant admits this is his residence (Corpuz Decl., ¶ 4 referring to this address as “my home”), that this adult and him certainly know each other, and this service address is his address of record on this motions. Defendant fails to overcome the presumption of valid service.

Defendant claims he was never personally served, which Plaintiff is not contending. Defendant then admits the documents were left with Carmela Young on August 18, 2025; but claims that he did not receive the mailing of the Summons and Complaint despite the POS’s attestation on mailing. Corpuz Decl., ¶¶ 3-6. Absent from the Corpuz Decl., are any facts that Carmela Young did not then provide the Summons and Complaint to the Defendant, nor any facts on how Defendant received notice of this action such that he could even file these motions. Additionally, the POS then properly attests to the mailing to Defendant’s residence address. Evidence Code Section 641 provides “[a] letter correctly addressed and properly mailed is presumed to have been received in the ordinary course of mail.” Defendant does not present any facts to support the argument that there were any problems in his receiving mail at his admitted home address, i.e. his declaration claiming to have not received the mailing is self-serving and not credible.

The Reply Declaration of Carmela Young was only submitted on reply, and therefore is untimely and need not be considered. However, the Court did review it and it still does not help Defendant’s motion. Ms. Young admits she was at the subject address, and that the pleadings were left with her at the subject address. Young Decl. ¶¶ 4, 10. Notably absent is any factual statement of what Ms. Young then did with the pleadings left with her. When coupled with the Corpuz Declaration, the burden has not been met to show the pleadings were not in fact given by Ms. Young to Defendant Corpuz.

Finally, Defendant Corpuz has now filed a general appearance in this case by the filing of these two motions. Therefore, the motion to quash is DENIED. Defendant is to file an answer or other responsive pleading within fifteen days after service of written notice of entry of order by Plaintiffs. (*See* Code Civ. Proc., § 418.10, subd. (b).)

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.